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Licensed Paralegal Practitioner for Kylee L. Keele

IN THE FOURTH JUDICIAL DISTRICT COURT FOR UTAH COUNTY

STATE OF UTAH

Court Address: 137 N. Freedom Blvd., Suite 100, Provo, Utah 84601

In the matter of the marriage of:

KYLEE LOTTIE KEELE

and

CHRISTOPHER SLATE BLACKBURN

DECREE OF DIVORCE

Civil No. 224402151

Judge Kraig Powell

Commissioner Marla Snow

2The above-captioned matter came on regularly for consideration by the Court without hearing. Kylee L. Keele ("Kylee") and Christopher Slate Blackburn ("Slate")³ entered into a Stipulation and Property Settlement Agreement (the "Agreement") to settle all issues of this divorce action. Pursuant to the terms of the Agreement, the parties consented that a Decree of Divorce could be entered with terms consistent to the terms of the Agreement. The Court considered the testimony of Kylee by way of Declaration as to jurisdiction and grounds for this divorce. The Court having reviewed the Agreement and other pleadings on file herein, and having entered its Findings of Fact and Conclusions of Law does now ORDER, ADJUDGE and DECREE as follows:

DIVORCE

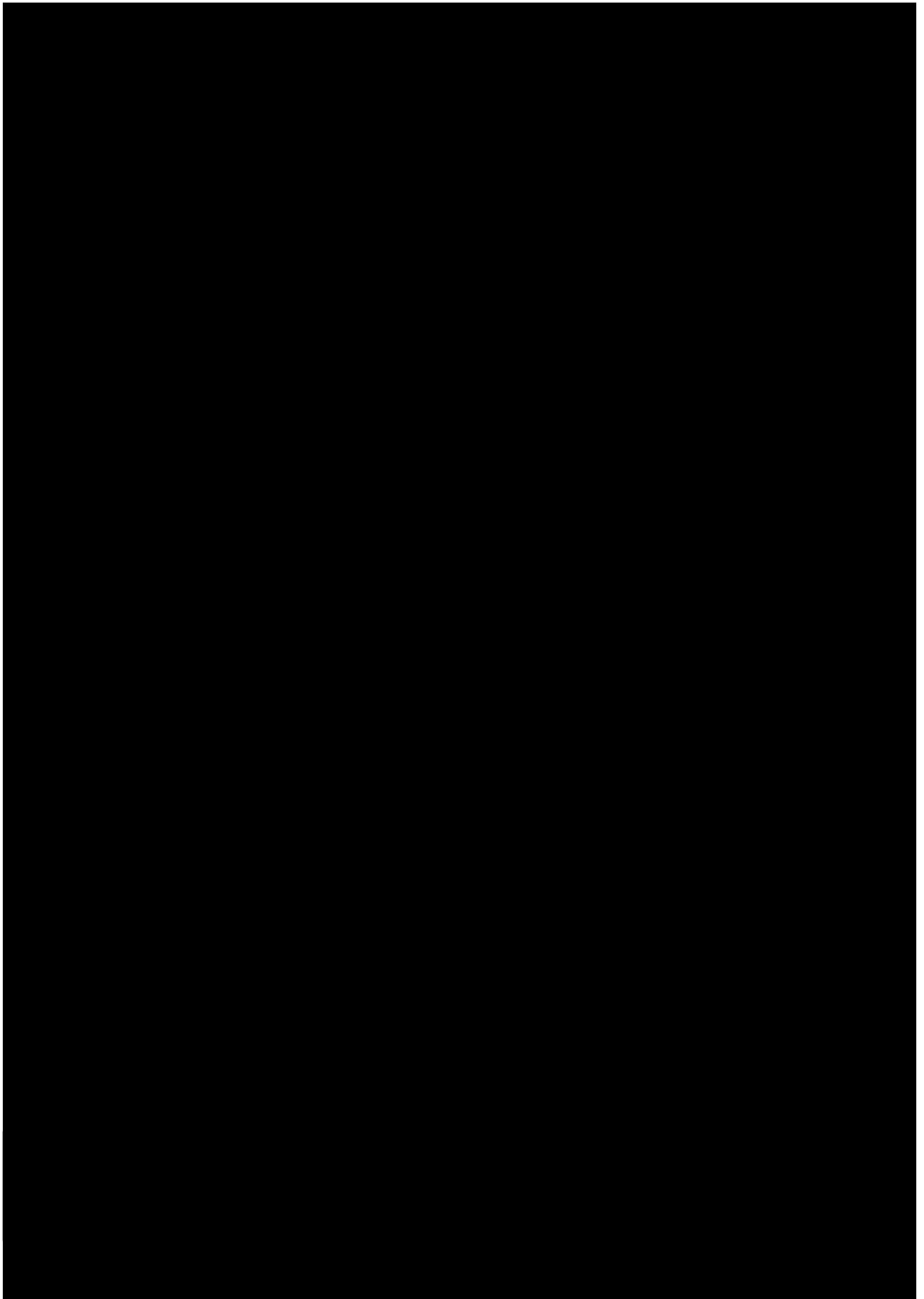
1. The parties are awarded a Decree of Divorce on the grounds of irreconcilable differences, and the marriage between Kylee and Slate be and the same is hereby dissolved, and the parties are hereby free and absolutely released from the bonds of matrimony and all the obligations thereof with said Decree to become final upon signing and entry.

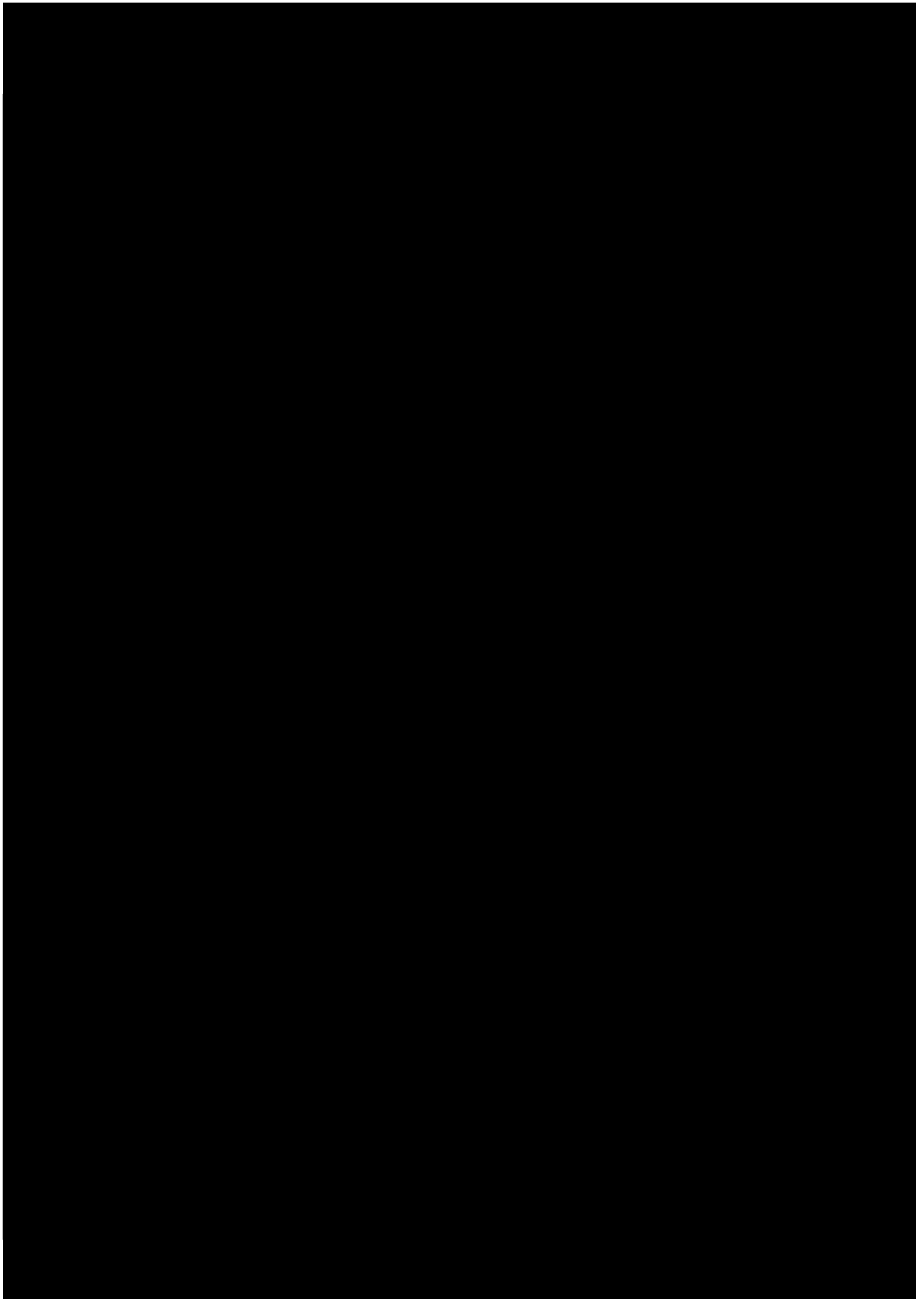
CHILD

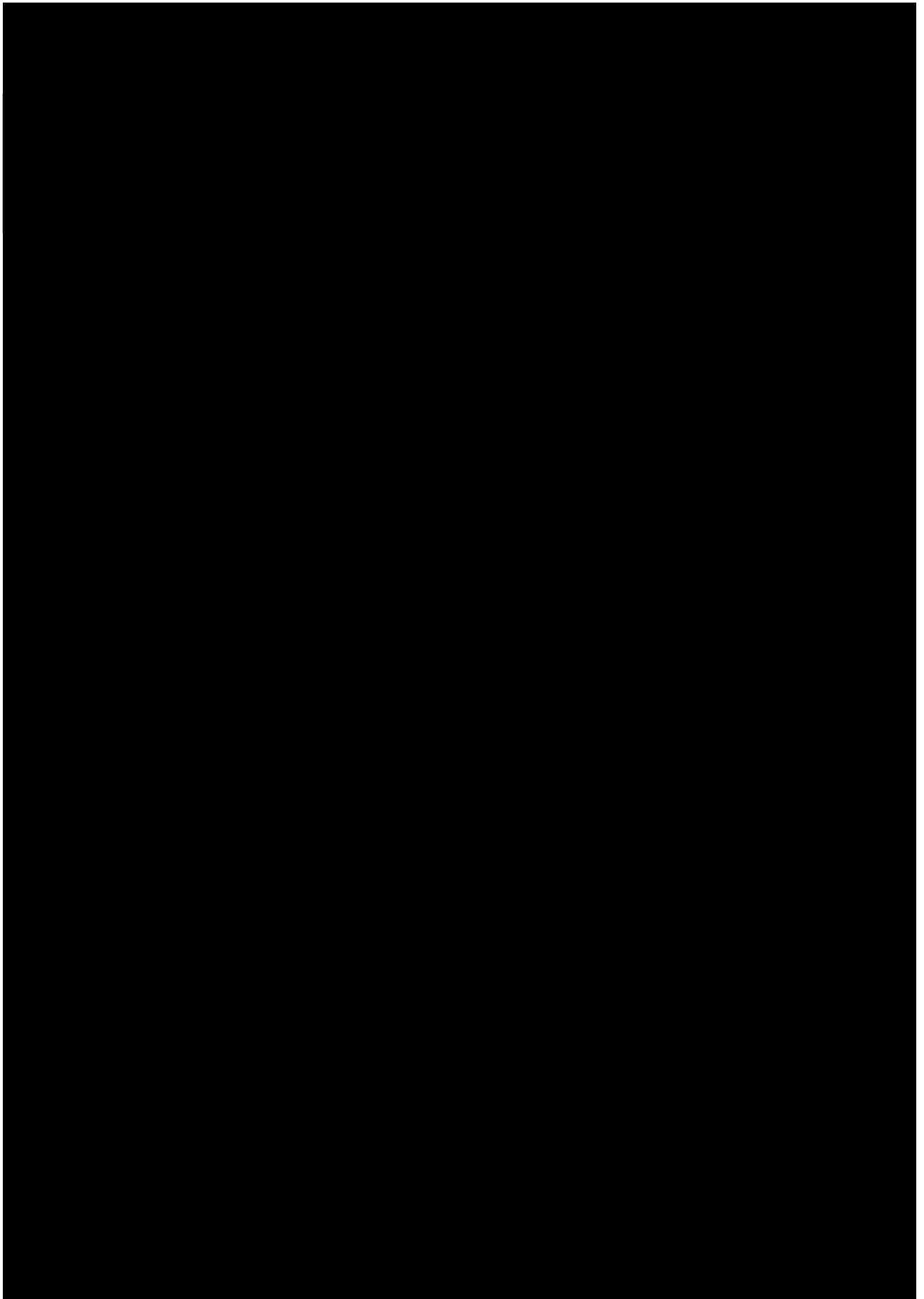
2. The parties have one child born as issue of their marriage: [REDACTED]

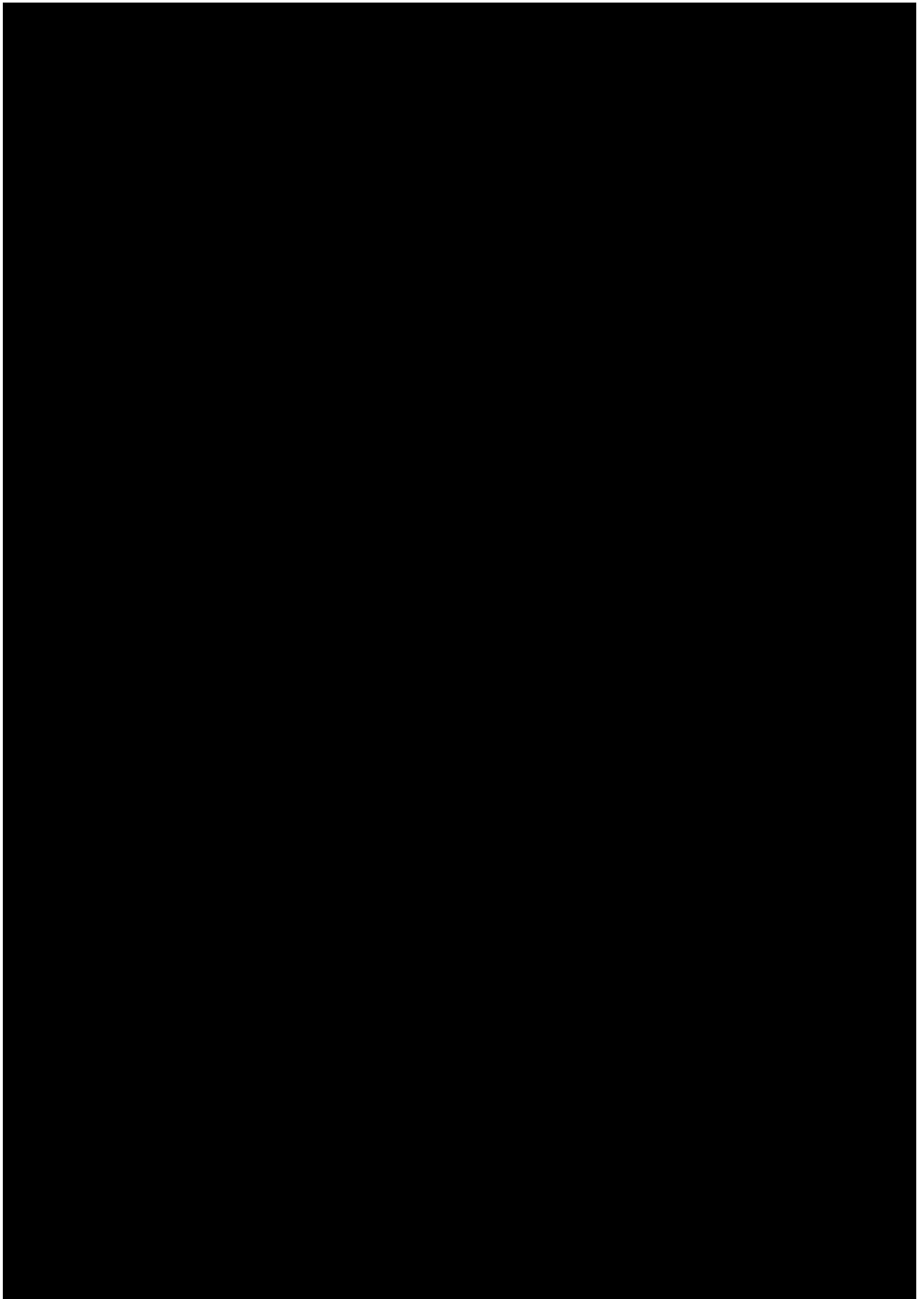
[REDACTED] (the "Child"). No other children are expected.

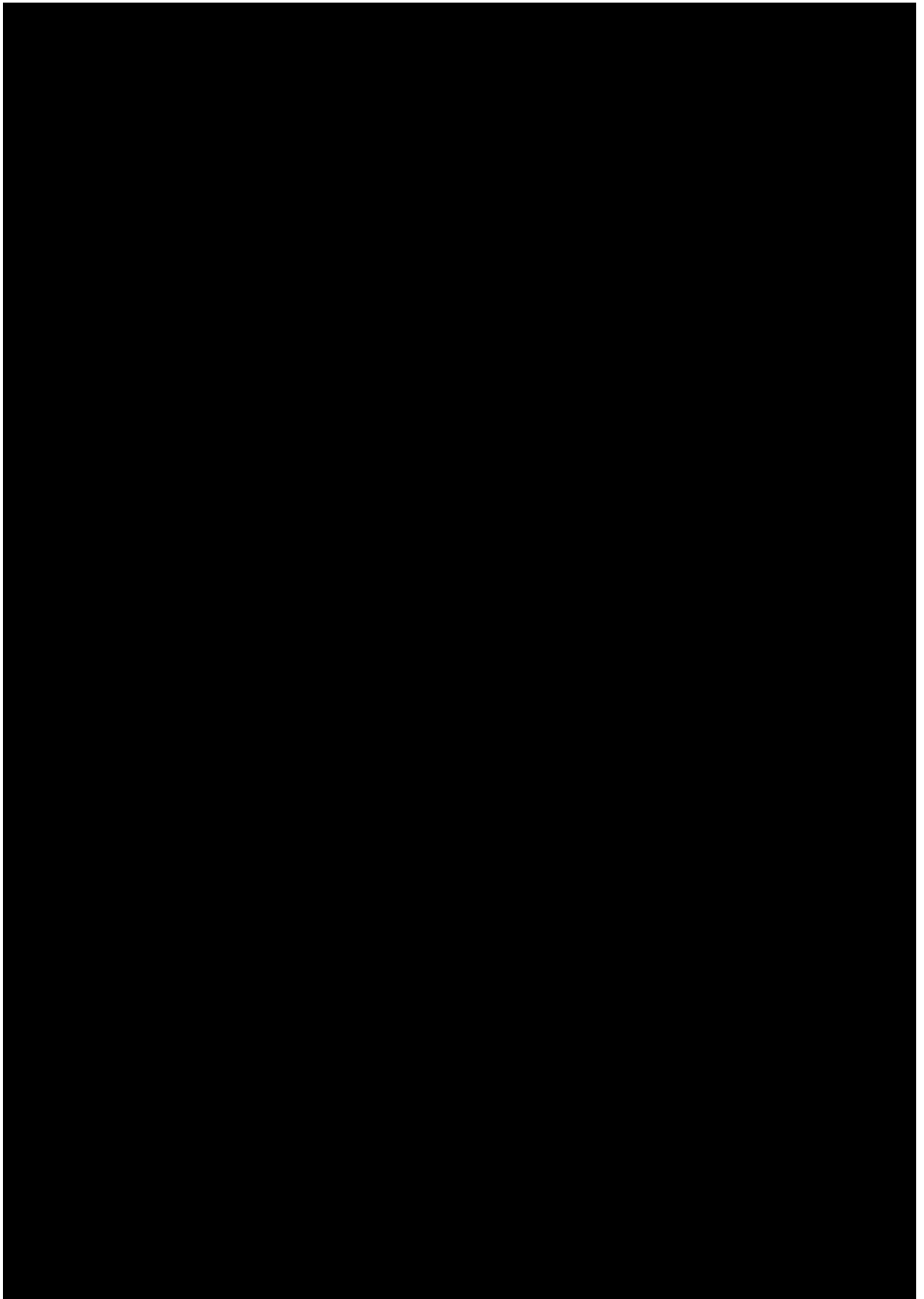
[REDACTED]

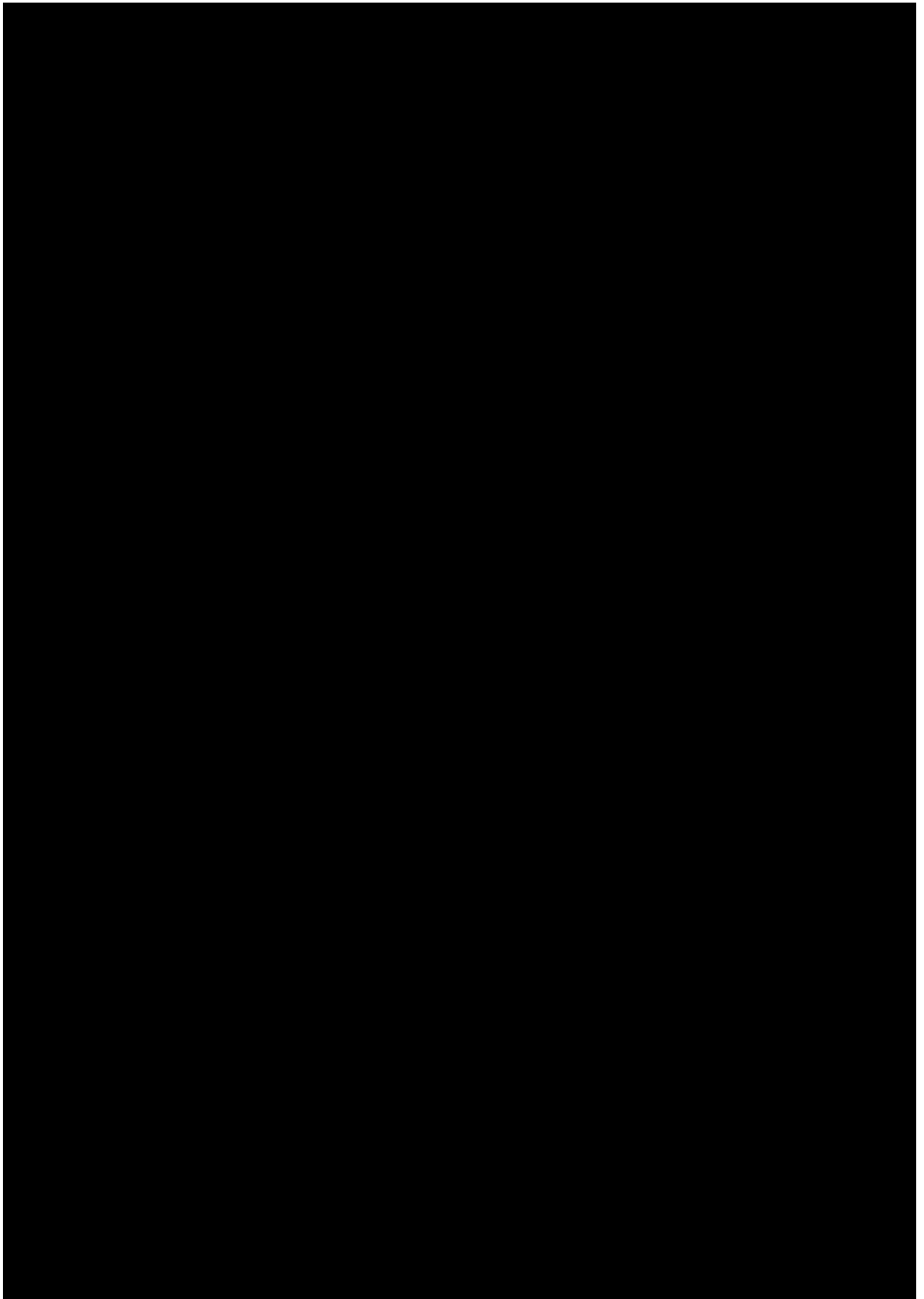


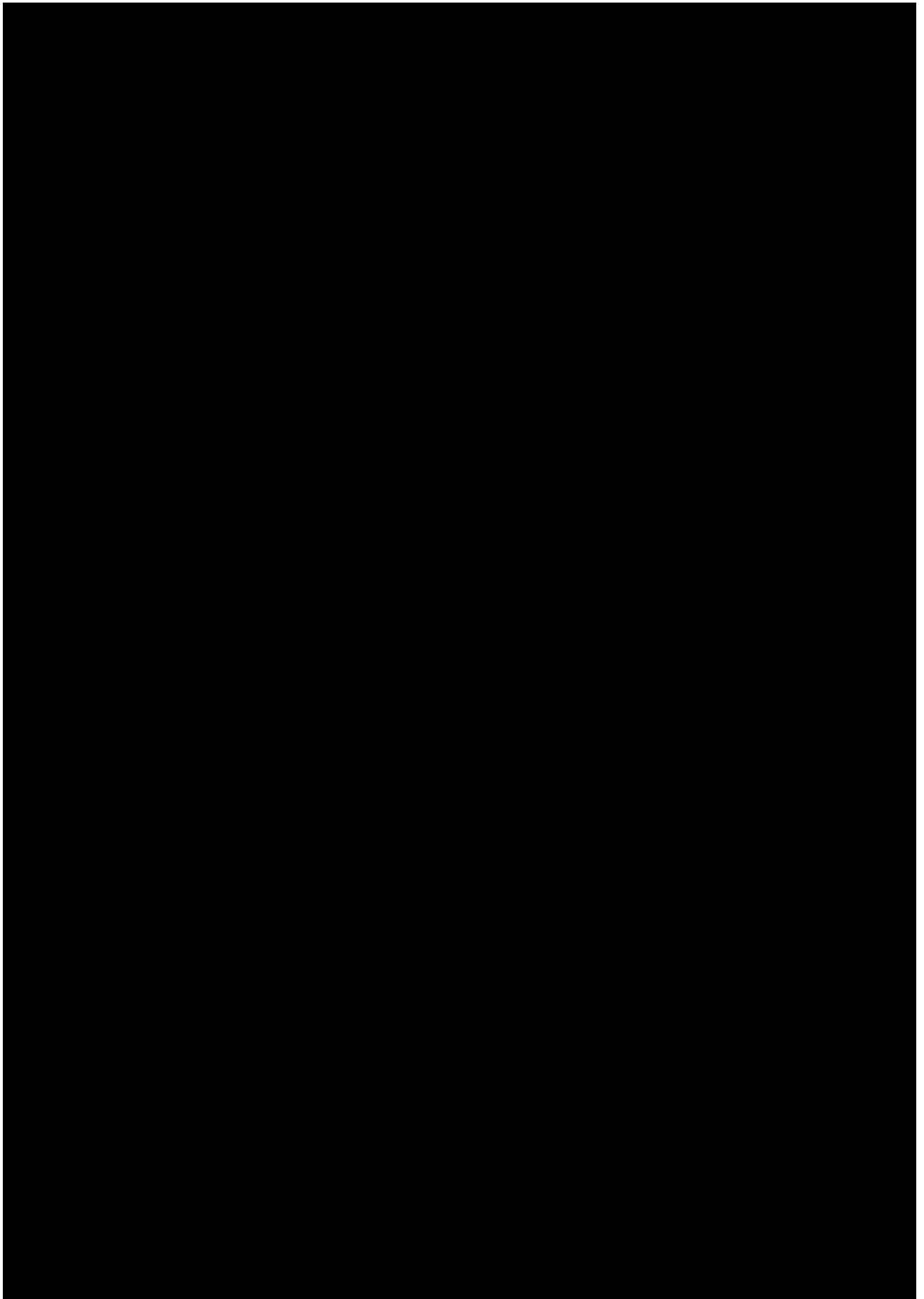


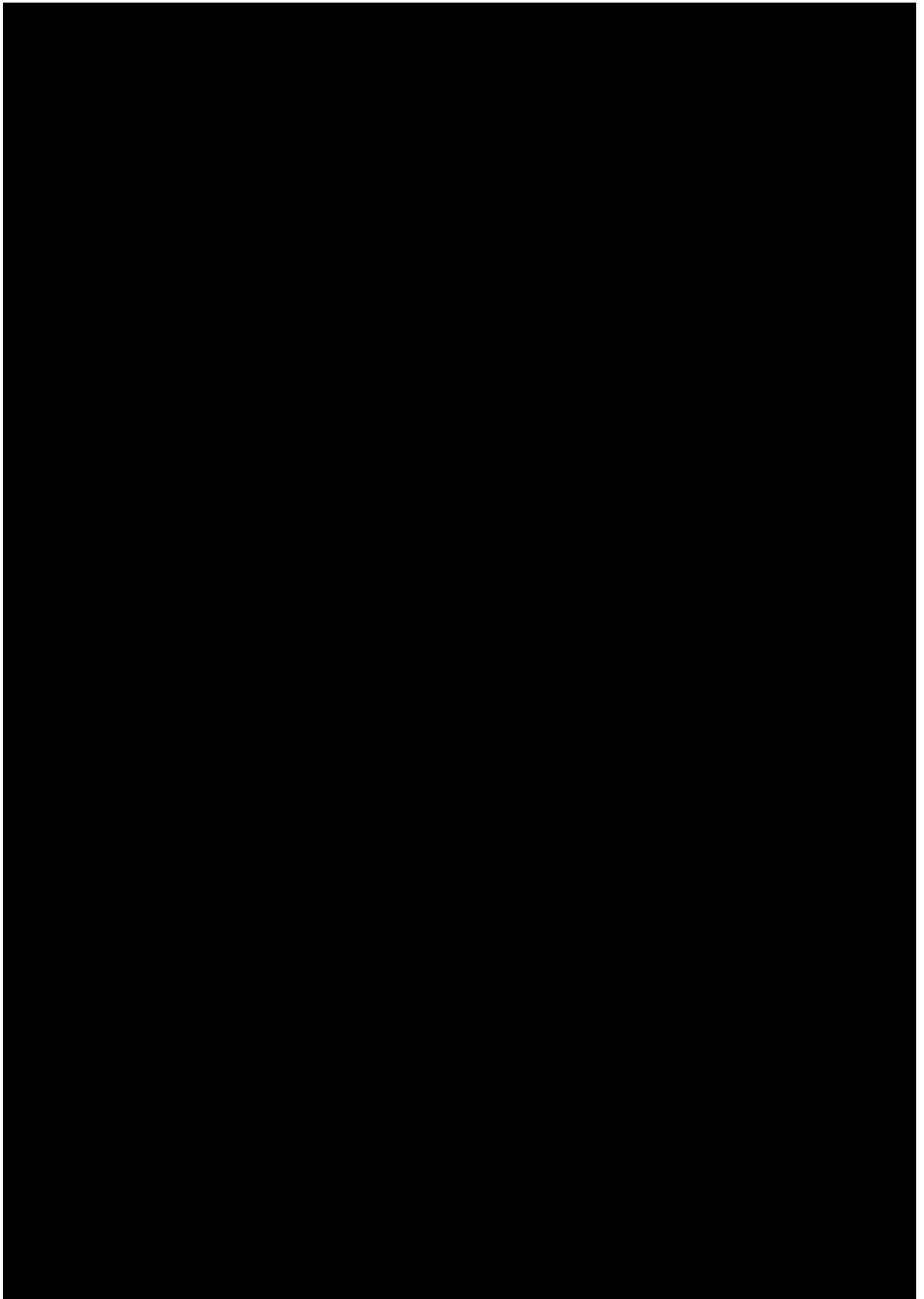


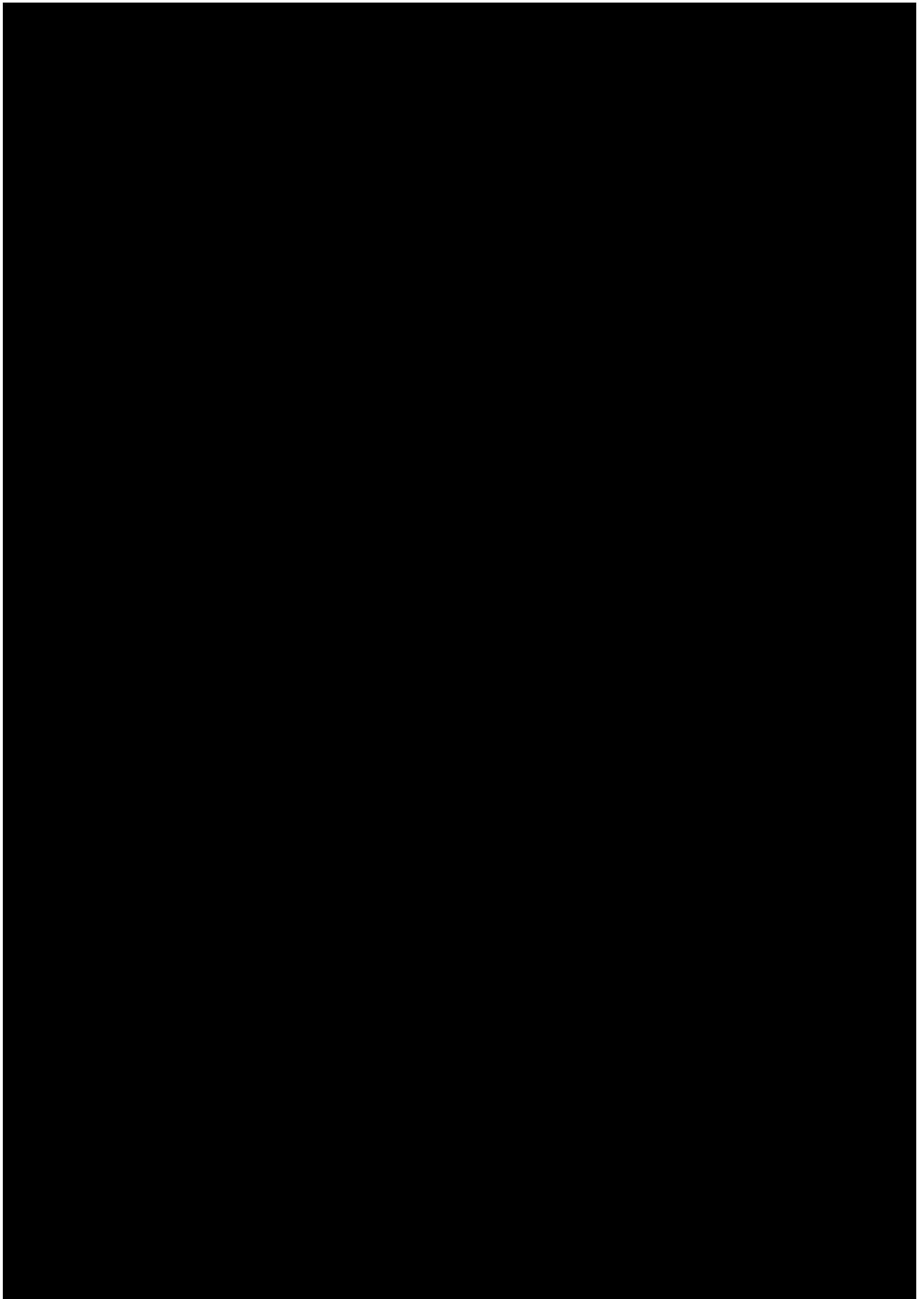


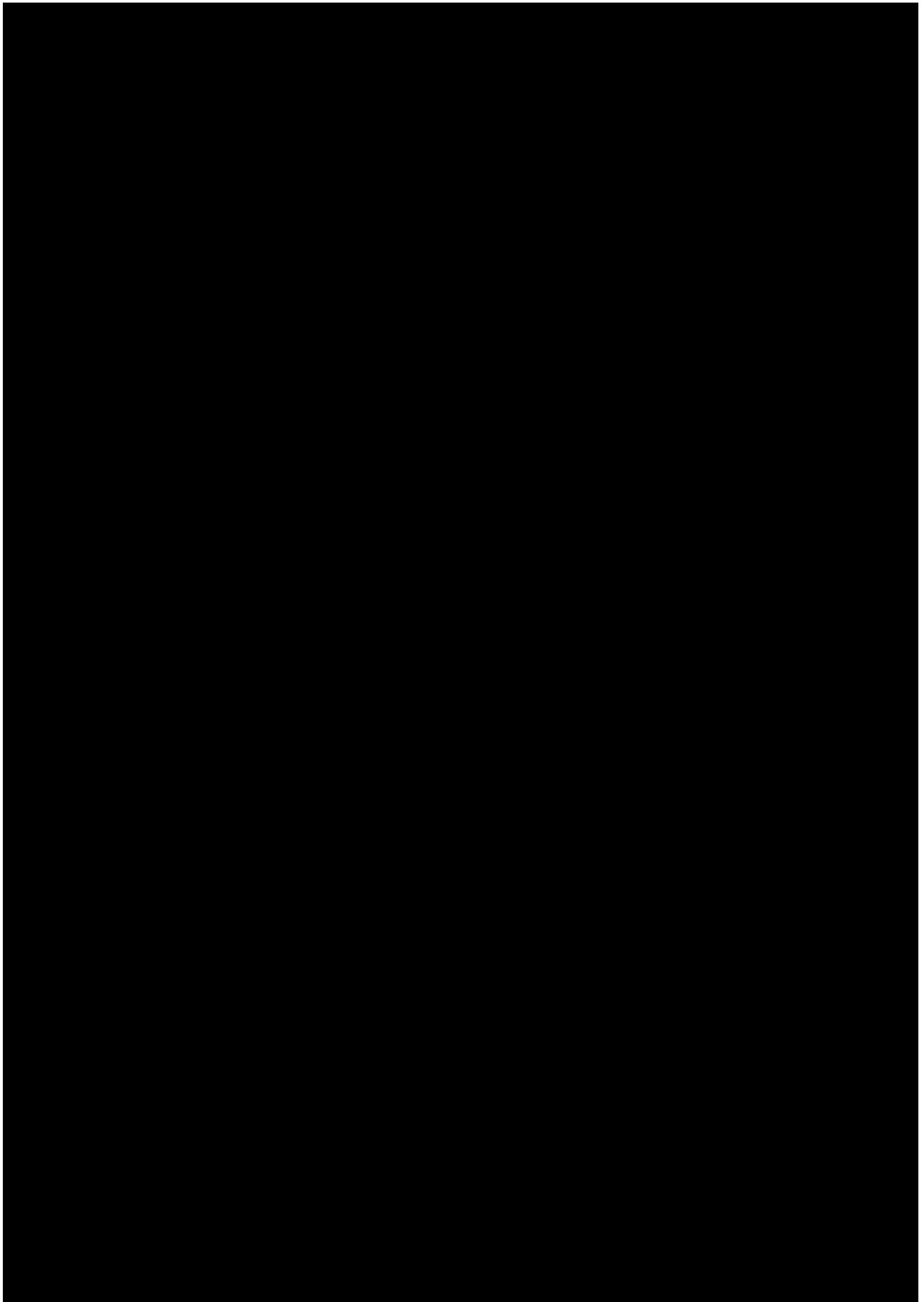


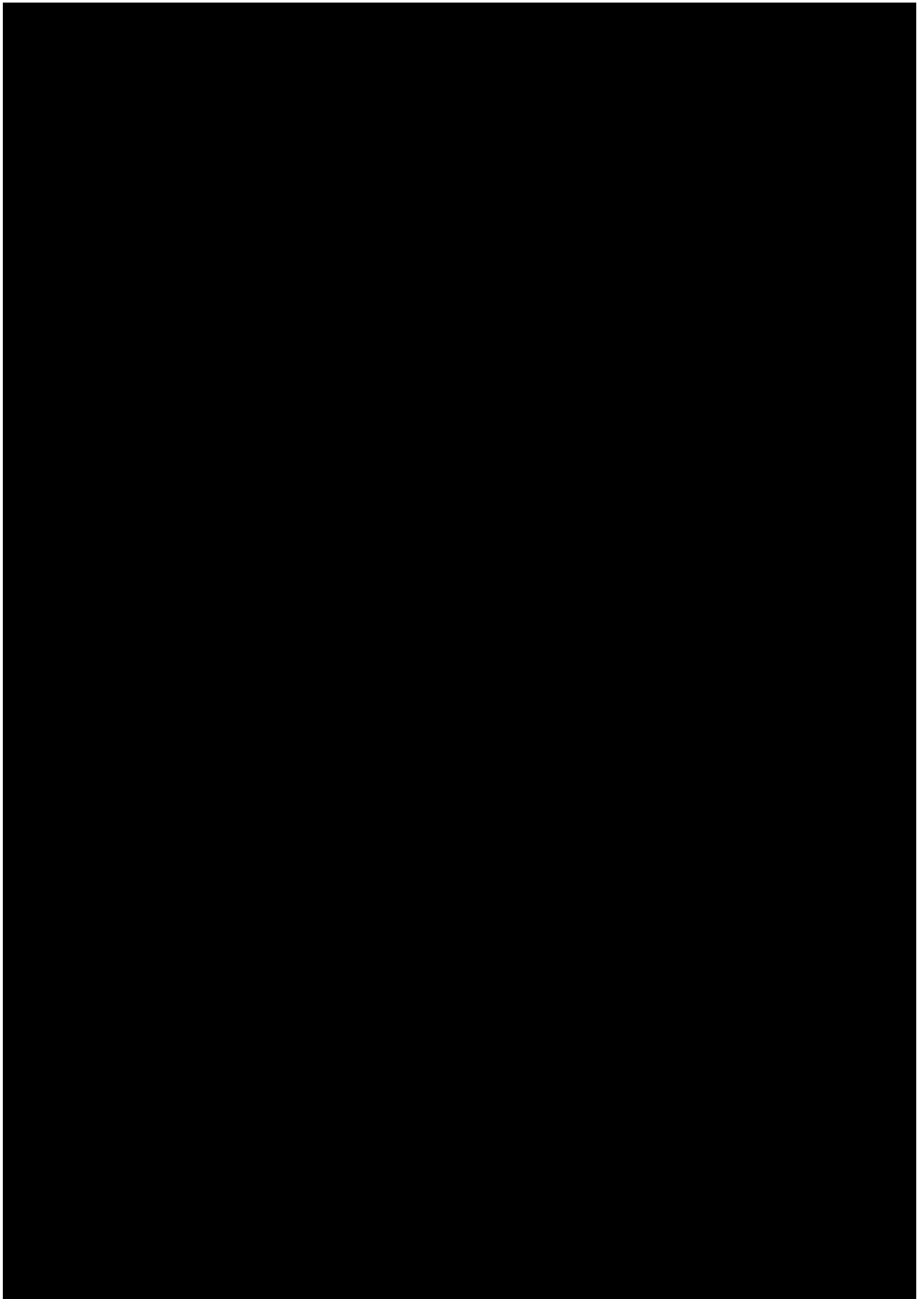


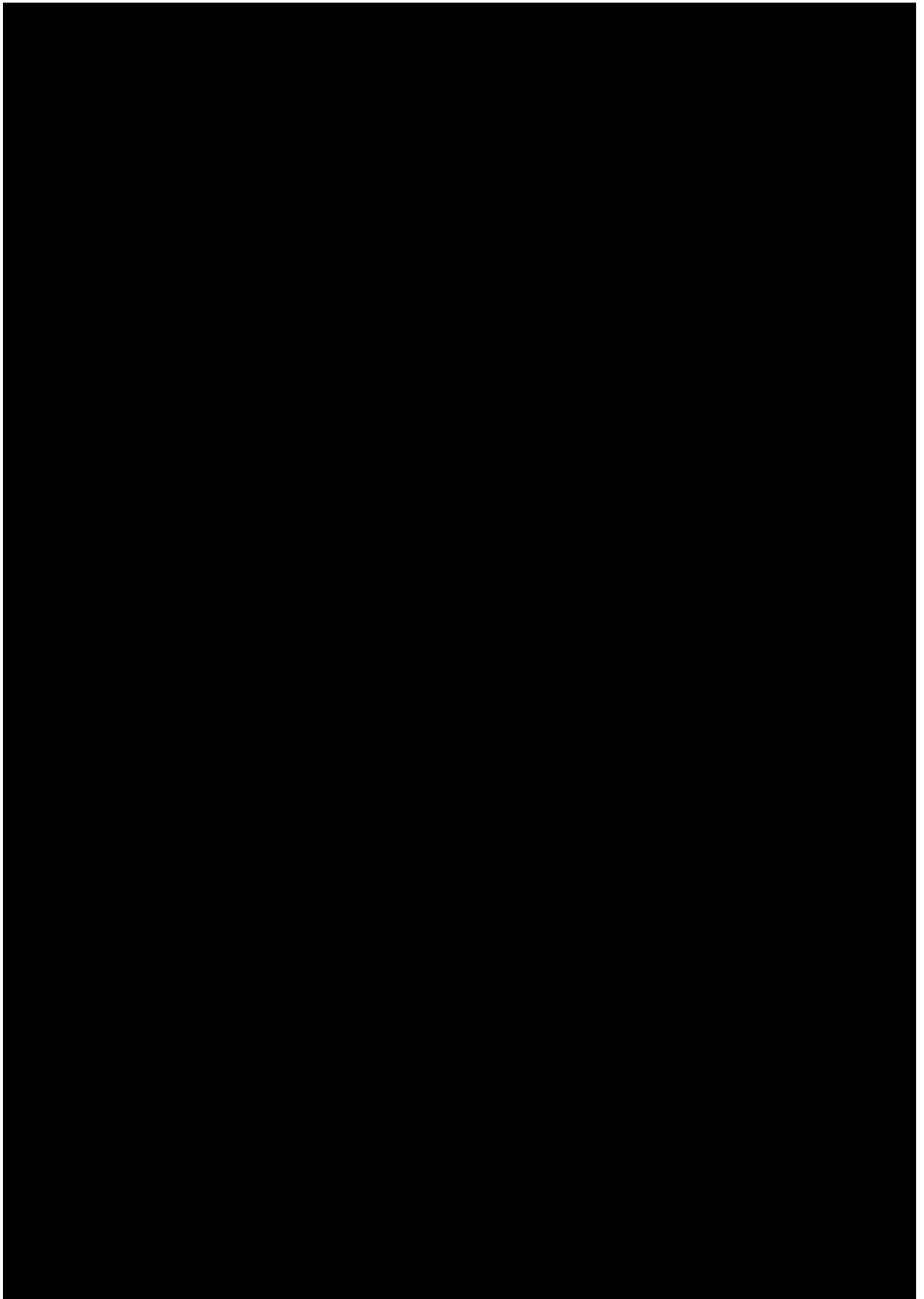


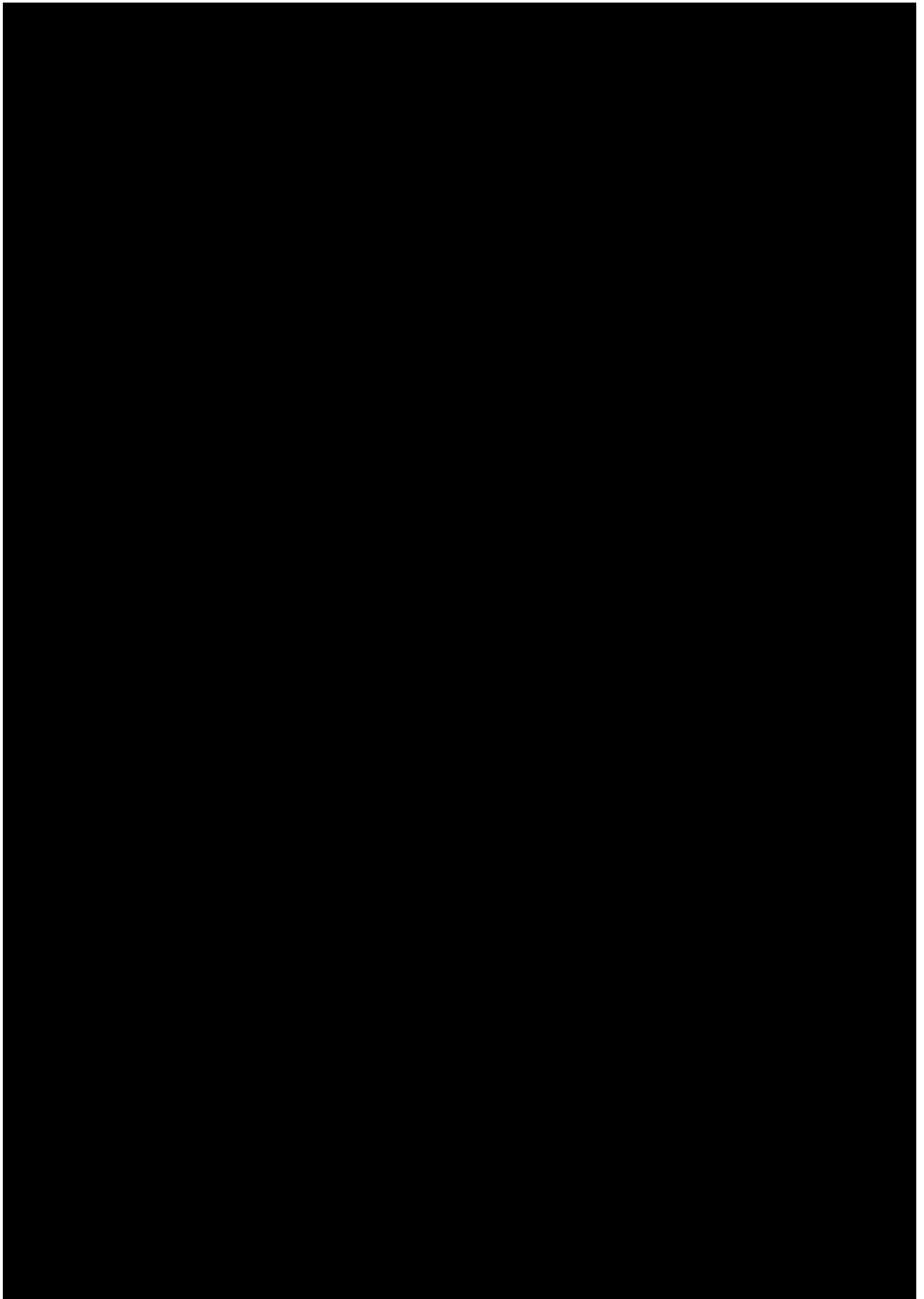


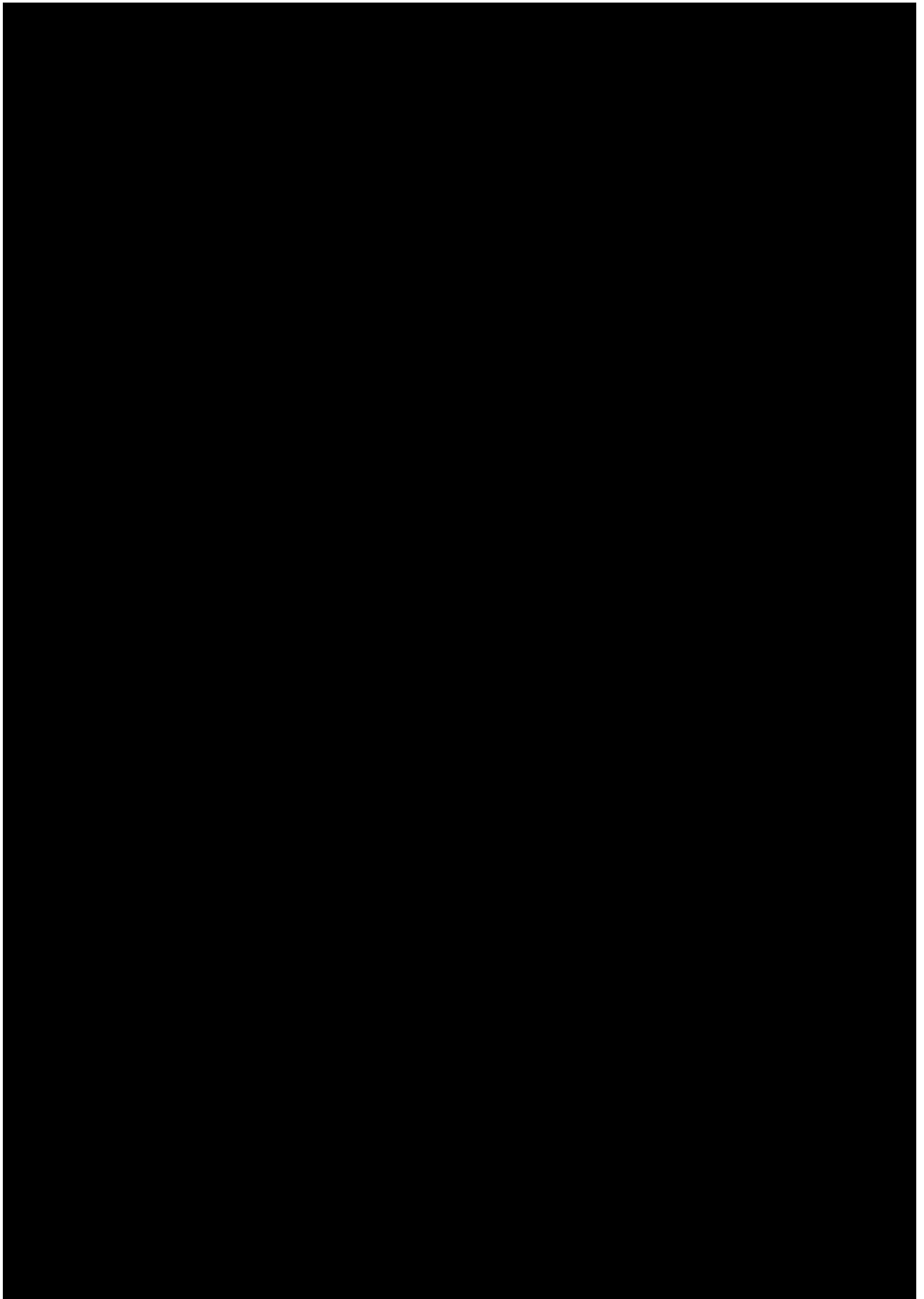


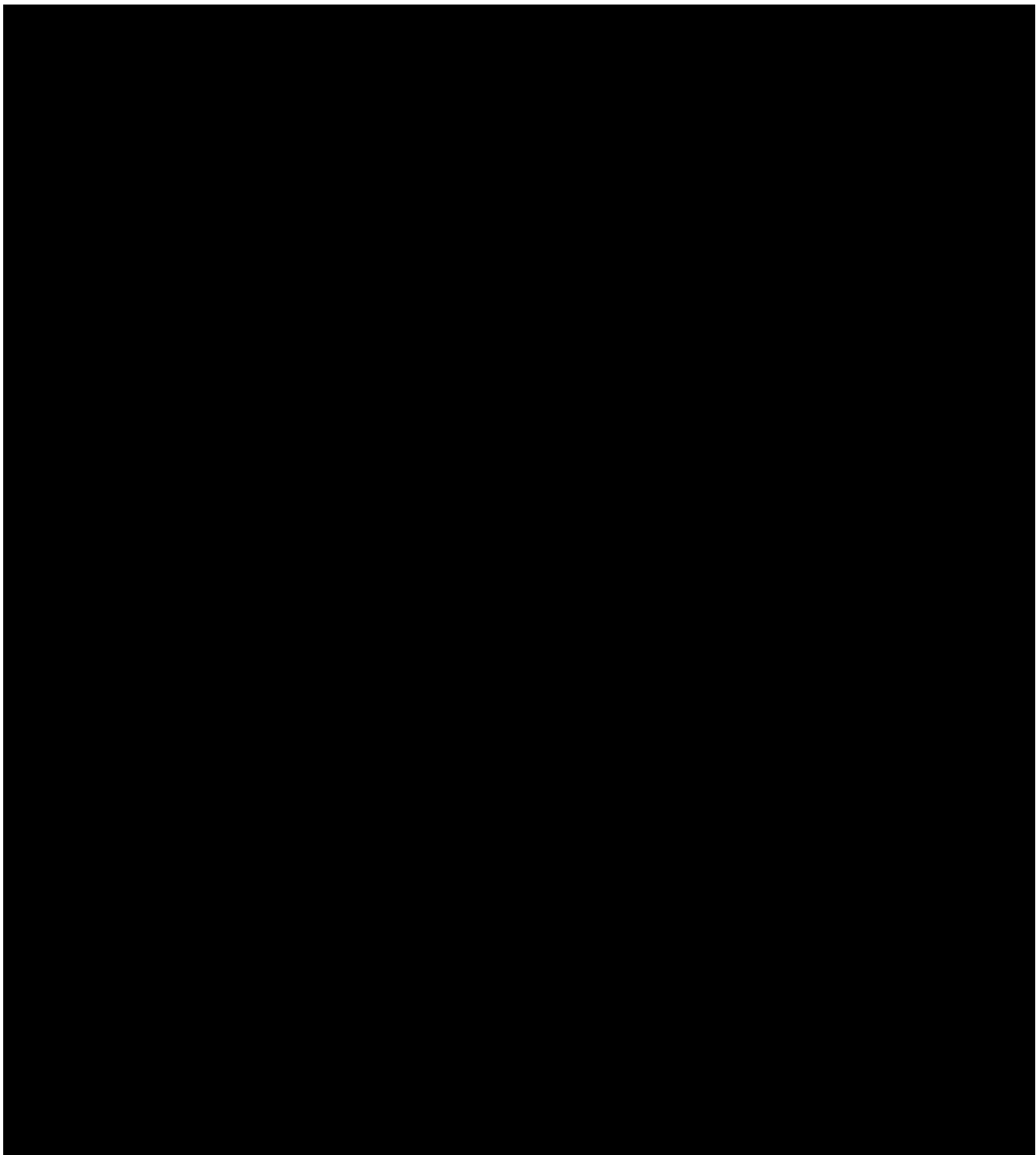












Child Support

42. Kylee earns a gross income of \$3,666 per month, based on her earned income to the equivalent of one-full-time, 40 hour job, for child support income.

43. Slate earns a gross income of \$2,500 per month based on his earned income to the equivalent of one-full time, 40 hour job, for child support income.

44. Pursuant to Utah Code Ann. §78B-12-205, Slate is ordered to pay to Kylee child support in the amount of \$306 per month beginning November 2022.

45. Slate is currently in school to obtain his Commercial Driver's License (CDL). When Slate completes this school/training and obtains his CDL and is working full-time, child support shall automatically be recalculated based on the parties' then current incomes and utilizing a Sole Custody Child Support Obligation Worksheet under the Utah Child Support Uniform Guidelines. The parties shall enter into a Stipulation and Order updating Slate's child support obligation, without having to file other documentation with the Court, including a Petition to Modify, requiring further Court assistance to enforce Slate's increased income for child support purposes.

46. Pursuant to UCA §78B-12-112, child support is due on the 1st day of each month. Installment payments may be made with half paid on the 5th and the other half paid on the 20th of each month. Slate's child support payments to Kylee shall be made by direct deposit or electronic funds transfer.

47. Child support shall continue until (1) the minor child reaches the age of eighteen (18) or graduates from high school during their normal and expected graduating class, whichever occurs later, or (2) if the child dies, marries, becomes a member of the armed forces of the United States, or is otherwise emancipated.

48. Pursuant to UCA §78B-12-210(8), 78B-12-210(9) and 78B-12-210(10), any child support may be adjusted by motion when the most recent Child Support Order is older than three

(3) years and by petition when the most recent Child Support Order is less than three (3) years old.

49. Automatic income withholding of Slate's child support obligation shall not be implemented at the present time. In the event Slate becomes more than 30 days delinquent in the payment of his child support obligation, automatic income withholding may be implemented through the Office of Recovery Services ("ORS"). Slate shall pay for all fees charged and/or associated with the collection of his child support payments through ORS.

50. **Medical/Dental Expenses:** The parties shall provide health care coverage for the minor Child pursuant to U.C.A. § 78B-12-212. The party who can obtain the best coverage at the most reasonable cost shall obtain insurance for the medical expenses of the minor Child in accordance with U.C.A. Section 78B-12-212. Kylee is currently providing medical and dental insurance coverage for the benefit of the minor child. Kylee's health insurance shall be considered the primary health insurance coverage.

a. Each parent shall share equally the out-of-pocket costs of the premium actually paid by a parent for the child's portion of insurance. The child's portion of the premium is a per capita share of the premium actually paid. The premium expenses for the child shall be calculated by dividing the premium amount by the number of persons covered under the policy and multiplying the result by the number of children in the instant case. This amount shall be automatically deducted from or added to the child support paid or owed.

b. Each parent shall share equally all reasonable and necessary uninsured expenses for the minor Child, including, but not limited to, one-half of all uninsured

expenses for medical, dental, surgery, deductibles and co-payments, orthodontic care, counseling, psychological or psychiatric care, hospitalization, physical therapy, ophthalmology and optometry, prescriptions, broken limbs, and continuing illnesses or allergies such as diabetes or asthma, as well as other reasonable and necessary uninsured medical and dental expenses incurred for the dependent child and actually paid by the parents.

c. The parent who incurs medical and dental expenses shall provide written verification of the cost and payment of medical and dental expenses to the other parent within 30 days of payment. The other parent shall remit payment within 30 days of receipt of the verification. If neither party is able to secure said insurance at a reasonable cost, each party shall be responsible for the payment of one-half of all reasonable and necessary medical and dental expenses for the minor child as indicated.

d. If, at any point in time, the dependent child is covered by the health, hospital, or dental insurance plans of both parents, the health, hospital, or dental insurance plan of Kylee shall be primary coverage for the dependent child and the health, hospital, or dental insurance plan of Slate shall be secondary coverage for the dependent child. If a parent remarries and his or her dependent child is not covered by that parent's health, hospital, or dental insurance plan but is covered by a step-parent's plan, the health, hospital, or dental insurance plan of the step-parent shall be treated as if it is the plan of the remarried parent and shall retain the same designation as the primary or secondary plan of the dependent child.

e. If the parties have double coverage for insurance, each party shall pay

their own insurance policy premium.

51. The parent ordered to maintain insurance shall provide verification of coverage to the other parent, or to the Office of Recovery Services under Title IV of the Social Security Act, upon initial enrollment of the dependent child, and thereafter on or before January 2 of each calendar year. The parent shall notify the other parent, or the Office of Recovery Services, of any change of insurance carrier, premium, or benefits within 30 calendar days of the date that parent first knew or should have known of the change.

ALIMONY AND RELATED PROVISIONS

52. In lieu of monthly alimony, Slate is ordered to pay Kylee a lump sum payment of [REDACTED] (which is calculated by Kylee's monthly expenses of [REDACTED] less her net income of [REDACTED] and monthly child support received in the amount of [REDACTED] leaving a deficit of [REDACTED] per month) for 4.5 years (the length of the marriage), as Slate's alimony obligation. This lump sum payment will be in the form of Kylee receiving additional equity in the marital residence. Kylee is awarded additional equity in the marital residence as referenced in paragraph 65, below. Thereafter each party irrevocably waives any other claim to past, present or future alimony under any condition or circumstance.

53. Each party shall be responsible to maintain his or her own medical, dental and vision insurance coverage. Each shall be responsible for his or her own uninsured medical, dental and vision costs.

PERSONAL PROPERTY DISTRIBUTION

54. Each party is awarded his or her clothing, memorabilia, and personal effects relative to any property that has not already been turned over to the other party.

55. Each party is awarded as his or her separate property, property acquired by gift, devise or inheritance, or as a gift from the other party during the marriage. Each party is awarded his or her own wedding ring.

56. The parties shall attempt to equitably divide their furniture and furnishings. If the parties are unable to do so, the parties shall participate in mediation. If the parties are unable to do so in mediation, the mediator shall act as an arbitrator and make the final decision. Each party shall pay for one-half of the fees of the mediator/arbitrator.

57. If the parties later find a marital asset not mentioned in the agreement or inadvertently forgotten about, the parties shall each receive one-half of the value or amount of any asset not provided for in the Agreement.

BANK ACCOUNTS

58. Each party is awarded his or her own bank account(s) in his or her own name.

Kylee is awarded her [REDACTED] checking account ending in [REDACTED] and [REDACTED] savings account ending in [REDACTED]

Slate is awarded his [REDACTED] savings accounts ending in [REDACTED] and [REDACTED] and his [REDACTED] checking account ending in [REDACTED] and [REDACTED] savings account ending in [REDACTED]

59. The parties have a joint account at [REDACTED] checking account ending in [REDACTED]. The funds in this account are awarded to Slate and the account shall immediately be closed.

60. Kylee is awarded her Health Savings Account through her employer, free and clear, without further claim from Slate.

DEBTS

61. During their marriage, the parties incurred certain debts and obligation. Each party shall pay the debts and obligations incurred in his or her own name. Kylee shall be solely responsible for the mortgage on the marital residence, without further claim from Slate, as indicated in paragraph 65, below.

VEHICLES

62. Kylee is awarded the 2021 Kia Seltos, free and clear of any claim of Slate, subject to the debts and obligations associated with the vehicle. Kylee shall refinance the loan on the Kia Seltos to remove Slate's name from that debt and liability within 90 days of entry of the Decree of Divorce. Slate is awarded the 2000 Kia Sedan, free and clear of any claim of Kylee, subject to any debts or obligations associated with that vehicle.

63. Each party shall be responsible for the debts, registration, taxes and insurance on the vehicle he or she is awarded.

64. If the parties later find a joint marital debt or obligation not mentioned in the Agreement or inadvertently forgotten about, the parties shall equally assume and pay any joint marital debt or obligations not provided for in the Agreement.

REAL PROPERTY

65. During their marriage, the parties acquired a home and real property located at [REDACTED] (the "marital residence"), which is awarded as follows:

- a. The marital residence is currently valued at [REDACTED] with a current outstanding principal mortgage balance of [REDACTED] as of September 1, 2022,

thus resulting in equity in the marital residence in the amount of [REDACTED] As referenced in paragraph 52 above, in lieu of monthly alimony, Slate is ordered to pay Kylee a lump sum payment of [REDACTED] from his share of the equity in the marital residence. Slate's portion of the equity in the home as of September 1, 2022 is [REDACTED]

b. Kylee is awarded all right, title and interest in the marital residence and shall assume and pay all debt associated with the home, holding Slate harmless therefrom.

c. For the time being, the marital residence will remain in both parties' names. The parties will work together [REDACTED]

[REDACTED] The parties will work together and come to an agreement when they will either sell the marital residence or Kylee is able to refinance the marital residence solely into her name and removing Slate from the mortgage and title of the marital residence. If the parties cannot agree, they shall attend mediation to reach a mutually agreeable decision.

d. When the time comes, if Kylee is able to refinance the marital residence solely into her name, Slate shall quit claim his interest in the marital home to Kylee simultaneously with receiving his portion of the equity in the amount of [REDACTED] and his name being removed from the mortgage.

RETIREMENT ACCOUNTS

66. During the course of the marriage, the parties acquired retirement accounts. Each party is awarded the retirement account or pension currently titled in his or her name, free and clear of any claim from the other.

STOCK ACCOUNTS

67. During the course of the marriage, the parties acquired stock accounts. Each party is awarded the stocks accounts in his or her name, free and clear of any claim from the other.

LIFE INSURANCE

68. If at any time, Slate is eligible and able to obtain life insurance on his life, either through his employment or through a private company, Slate is ordered to designate Kylee as a 100% beneficiary on that life insurance policy, so long as he has a child support obligation to Kylee.

DIVORCE CLASSES

70. Slate has taken the divorce orientation and divorce education classes for parents.

TAX PROVISIONS

71. In the event any income tax return of the parties filed on a married filing joint basis is audited, the parties shall be equally liable for any tax, penalty or interest assessed or shall be equally entitled to any refund.

72. Kylee shall be entitled to claim as an itemized deduction any mortgage interest or real property taxes paid after December 31, 2021, relative to the home and real property.

Dependency Exemption/Tax Credit:

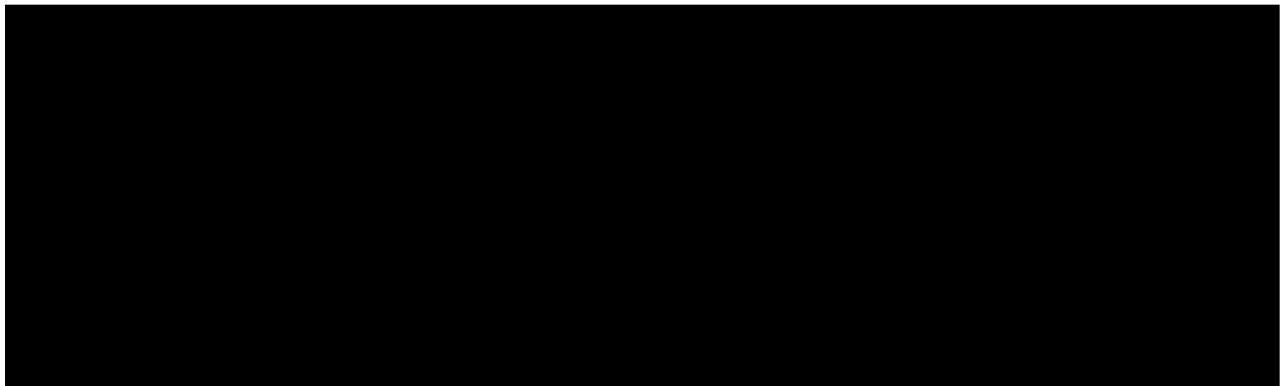
73. The parties shall share the dependency exemption/tax credit for the minor Child as follows:

a. The parties shall alternate the dependency exemption/tax credit for the minor child. Slate shall be entitled to claim the minor child as a dependency exemption/tax credit for odd-numbered tax years, and Kylee shall claim the minor child as a dependency exemption/tax credit for even-numbered tax years.

b. Slate shall be entitled to claim the dependency exemption/tax credits indicated herein as long as he is current on his child support obligation by December 31st of any tax year.

MISCELLANEOUS PROVISIONS

74. The parties shall execute such documents as may be necessary to transfer the property as awarded by the Court to the party entitled thereto within sixty (60) days of entry of the Decree of Divorce.



76. Each party shall pay his or her own legal fees and costs incurred in this action.

MUTUAL RESTRAINING ORDERS

77. A restraining order shall be entered enjoining each party from harassing, annoying or bothering the other party, or from contacting any member of the other person's family or other party's friends, or from committing any domestic violence or abuse against the other party. This includes, but is not limited to, speaking derogatorily about the other parent in the presence of the

Child; speaking to the Child about the issues in this case; attempting to influence the Child's preferences regarding custody or parent-time; or attempting to diminish the love and affection of the Child for the other parent.

78. Identity. Neither party shall use the other party's likeness, picture, name, identification, or credit of the other party to obtain credit, open an account for any service, or obtain any other service, including inappropriate postings and photos to their social media accounts.

79. Both parties shall be prohibited from doing or saying anything to the detriment, harm, or injury of the other party, including but not limited to speaking derogatorily about the other party.

80. Both parties shall be mutually restrained from inducing or allowing a third party to do what they themselves are prohibited from doing under these restraining order paragraphs and shall have the affirmative duty to use his or her best efforts to prevent third parties from committing such violations.

81. A restraining order shall be entered enjoining each party from accessing, interfering with or changing the other party's phone, email account, or social media accounts.

82. Right to Consult with an Attorney or Licensed Paralegal Practitioner. Slate has the right to consult with an attorney or licensed paralegal practitioner with respect to the settlement of this matter. He does not wish to have the attorney or licensed paralegal practitioner represent him further and believes that this is a fair and equitable settlement, given the circumstances of the parties and the duration of the marriage. Slate recognizes that Amber Alleman represents Kylee only and that Amber Alleman cannot offer Slate legal advice. Slate

enters the Agreement voluntarily and without duress or coercion. Kylee and Slate have negotiated the Agreement between themselves and any ambiguity shall not be construed against either party.

83. Disclosure. The parties acknowledge that each has fully and completely disclosed to the other all assets and debts of every kind and nature known to him or her in which he or she may have an interest in whatsoever, that the Agreement encompasses and deals with all such assets and liabilities, and that there are no assets or liabilities, contingent or otherwise, that have not been disclosed in connection with the final settlement of this matter.

84. In the event of a dispute between the parties as to the interpretation of a term of the Agreement, the parties shall mediate the issue before either party may initiate court action. The parties shall equally pay the mediator's fees.

****ENTERED BY THE COURT ON THE DATE AND AS INDICATED BY
THE COURT'S SEAL AT THE TOP OF THE FIRST PAGE****

APPROVED this 1st of November, 2022.

/s/ CHRISTOPHER SLATE BLACKBURN
(signed by Amber Alleman with permission of
CHRISTOPHER SLATE BLACKBURN by email)
CHRISTOPHER SLATE BLACKBURN
Pro Se

CERTIFICATE OF SERVICE

I hereby certify that, upon information and belief, all non-public information has been omitted or redacted from this public record. I also hereby certify that a true and correct copy of the foregoing unsigned **Decree of Divorce** was served pursuant to Rules 5(b) and 7(f) of the U.R.C.P. via electronic mail on October 28, 2022, to the following:

Christopher Slate Blackburn


/s/ Amber Alleman

Notice: Pursuant to Rule 7(j)(5)(C) of the Utah Rules of Civil Procedure, notice of objection as to the form of the order of the court shall be filed within seven days after service.